TENTATIVE RULINGS FOR DEPT. S36 7/2/2026

BEFORE THE HONORABLE JOSEPH WIDMAN

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ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order For Appointment of Official Reporter Pro Tempore" to the court in the form found on the Court's website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT'S WEBSITE.

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You may appear by remote appearance at the hearing. (https://www.zoomgov.com/my/dept.s36)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN BERNARDINO

LOBEL FINANCIAL CORP., Plaintiff, v. VIVIANA CHAVEZ, Defendant.	Case No.: CIVSB2504590 **[TENTATIVE] ORDER DENYING MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT FILED BY DEFENDANT VIVIANA CHAVEZ**

I. INTRODUCTION

This is a limited civil collection action. On March 7, 2025, Plaintiff Lobel Financial Corp. filed a Complaint against Defendant Viviana Chavez. Plaintiff alleges the following causes of action: (1) breach of contract; (2) common count: account stated; and (3) common count: open book account. Plaintiff's allegations arise out of Defendant's purchase of a vehicle under an agreement that the seller assigned to Plaintiff. Plaintiff seeks damages of $14,071.61.

On April 2, 2025, Plaintiff filed a Proof of Service of Summons in which it states Defendant was served by substitute service on April 1, 2025, at 5:37 p.m. by delivering the documents to Cecilla Cardona, sibling and co-resident. Cardona was thereafter described. A declaration of reasonable diligence is attached to the Proof of Service.

On June 6, 2025, the Court entered Defendant's default. The Court entered a default judgment against Defendant in the amount of $20,642.46 on September 15, 2025.

Now before the Court is Defendant's motion to set aside the default, which was filed on March 16, 2026. Relief is requested under Code of Civil Procedure section 473, subdivision (b). Defendant asserts that she did not respond to the Complaint due to mistake, inadvertence, surprise, or excusable neglect. No proposed pleading is submitted with the motion. Defendant also did not file a declaration in support of the motion or a proof of service of the motion.

On April 7, 2026, Plaintiff filed an opposition. Plaintiff points out that a proposed responsive pleading was not submitted with the motion. Plaintiff also argues that the motion is not supported by evidence of excusable neglect. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. WHY THE COURT IS DENYING THE MOTION

Under Code of Civil Procedure section 473, subdivision (b), "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." The motion must be made within a reasonable time but in no case exceeding six months after the default was taken. (Code Civ. Proc., § 473, subd. (b).)

With respect to discretionary relief under section 473, subdivision (b), the six-month time limit runs from the date of entry of default. (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.) "'The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed.'" (*Ibid.*) An application for relief requires filing both a notice of motion and service on the adverse party within the six-month period. (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340-41.)

With the entry of Defendant's default on June 6, 2025, the motion must be denied as untimely where Defendant's motion was filed more than six months after the default judgment was entered. The six-month deadline was December 6, 2025. The motion was filed on March 16, 2026.

In addition, Plaintiff is correct that the motion should be denied because Defendant does not present any evidence to demonstrate Defendant's mistake, inadvertence, surprise, or excusable neglect.

Finally, Plaintiff is correct that with discretionary relief under section 473, subdivision (b), a copy of the proposed answer, demurrer or other pleading must be attached to the application for relief, "otherwise the application shall not be granted…." The proposed pleading requirement is not jurisdictional, and substantial compliance suffices. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal.App.4th 393, 403 [substantial compliance found where counsel offered proposed answer at motion hearing rather than serving it with moving papers].) But here, no compliance is demonstrated.

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III. CONCLUSION

Defendant Viviana Chavez's motion to set aside default is respectfully DENIED. A motion seeking relief under Code of Civil Procedure section 473, subdivision (b), must be filed and served within six months of entry of the default.

IT IS SO ORDERED.

Dated: ________________

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN BERNARDINO

SIR LEXIES LEE and ESTELA LEE FLORES, Plaintiffs, v. THE MELVIN B. JEFFERSON TRUST, et al., Defendants.	Case No.: CIVVS2505215 **[TENTATIVE] ORDER GRANTING PLAINTIFFS' (1) MOTION FOR LEAVE TO FILE AMENDED COMPLAINT; AND (2) MOTION FOR A PRELIMINARY INJUNCTION**

IV. INTRODUCTION

A. The Complaint's Allegations

On July 29, 2025, Plaintiffs Sir Lexies Lee and Estela Lee Flores filed their Complaint against Defendants The Melvin B. Jefferson Trust, Cornell Jefferson (Trust); Cornell Jefferson; and Ress Financial Corporation (Ress). Plaintiffs allege five causes of action for 1) Quiet Title, 2) Fraud, 3) Intentional Interference with Contract Relations, 4) Breach of Contract, and 5) Common Counts.

Plaintiffs allege they own two parcels of real property in Apple Valley, San Bernardino County. Parcel One is located at 20565 Yucca Loma Road and Parcel Two is 20585 Yucca Loma

Road. Defendant Trust was the previous owner of the parcels. Grantor Melvin B. Jefferson transferred the properties during his lifetime to Plaintiff Flores. Eventually, Defendant Cornell Jefferson became the successor trustee of the Trust. Defendant Ress allegedly services the loans for both properties.

Plaintiffs further allege that after the parcels were deeded to Plaintiff Flores, Plaintiffs made monthly payments to Melvin B. Jefferson during his lifetime, then to Shirley Jefferson, the next successor trustee. It is alleged Shirley Jefferson told Plaintiffs not to make payments to Defendant Cornell Jefferson because he would not be the named successor trustee. Plaintiffs were not advised as to where to send payments thereafter. Seventeen months after Shirley Jefferson's passing, in January 2024, Cornell Jefferson was then named by the court as the successor trustee. Once appointed, he demanded all payments be made but admitted being unaware of the exact amount owed. Plaintiffs resumed monthly payments in March 2024. On April 9, 2024, a Notice of Default was recorded. In a May 20, 2024 letter, Ress stated it was directed to return payments to Plaintiffs.

In sum, it is alleged that Defendant Cornell Jefferson refused to accept payments on the loan prior to the Notice of Default but also refused to provide a payment history or current balance. Ress admitted an accounting error and promised to record a Notice of Rescission, but failed to do so. Plaintiffs allege the Notice of Default was thus recorded on false and incomplete payment accounting. Plaintiffs also allege they could not locate or contact Defendant Cornell Jefferson. Finally, as a result of the Notice of Foreclosure, the tenant at both properties is refusing to pay rent.

On May 14, 2026, Plaintiffs named Kathy Denise Kellner, Daniel Patrick Massey, National Realty Group, and Polaris Endeavors, Inc. as Does 1 through 4, respectively.

B. Pending Motions

There are two motions currently before the Court. First, on May 8, 2026, Plaintiffs filed their Motion for Leave to File First Amended Complaint. Then, on June 1, 2026, Plaintiffs filed their Motion for Preliminary Injunction, which is supported by the declarations of Zshonette Reed, Estela Lee Flores, and Sir Lexies Lee, as well as a Compendium of Exhibits.

On June 18, 2026, Defendants Kathy Denise Kellner and Daniel Patrick Massey; Polaris Endeavors, Inc.; and Ress Financial filed oppositions to the Motion for Preliminary Injunction. Ress has also filed a Request for Judicial Notice.

On June 22, 2026, Defendants Cornell Jefferson and the Trust filed an Opposition to the Motion for Leave to File Amended Complaint. On June 24, 2026, Plaintiffs filed replies. After issuing a tentative ruling and holding a hearing on the motions, the Court now issues its final ruling as to both motions.

V. <u>REQUESTS FOR JUDICIAL NOTICE</u>

With respect to its Opposition to the Motion for Preliminary Injunction, Defendant Ress requests judicial notice of the Notice of Default recorded on February 5, 2025, in the Official Records of San Bernardino County, Instrument Number 2025-0024108 and its Verified Answer filed in this case on December 1, 2025. Judicial notice of the existence of recorded instruments and their legally operative effect is proper; therefore, as to Request No. 1, the Court GRANTS the request. (Evid. Code, § 452, subd. (c).) The Court further GRANTS Request No. 2 pursuant to Evidence Code section 452, subd. (d).

VI. <u>MOTION FOR LEAVE TO AMEND THE COMPLAINT</u>

Per Code of Civil Procedure section 473, subdivision (a)(1), the Court has wide discretion to permit a party to amend a pleading. Judicial policy favors resolution on the merits; thus, the court will usually liberally grant leave to amend a pleading. (*Nestle v. City of Santa*

Monica (1972) 6 Cal.3d 920, 939.) Ordinarily, the court does not consider the validity of the proposed amendment. Grounds for demurrer or motion to strike are premature. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (Kittredge Sports Co.).) However, the court undoubtedly has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action or defense. Such denial is "most appropriate" where the pleading is deficient, as a matter of law, and the defect could not be cured by further appropriate amendment. (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280–81, *disapproved on other grounds in Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407.)

If a party has been dilatory in seeking an amendment, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (*Hirsa v. Superior Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-88.)

Here, Plaintiffs move for leave to file a First Amended Complaint on the following grounds: 1) significant events material to Plaintiffs' claims occurred after the original complaint was filed on July 29, 2025, including the September 3, 2025 trustee's sale conducted notwithstanding the recorded Notices of Pendency of Action, the recording of void Trustee's Deeds Upon Sale in October and November 2025, the unauthorized listing of Parcel Two for sale during the pendency of this action beginning February 26, 2026, and the wrongful arrest of Plaintiff Sir Lexies Lee on March 17, 2026; 2) to add 11 new defendants whose identities and roles were previously unknown, 3) to expand the complaint from five to 23 causes of action (adding 18 new causes of action arising from post-filing conduct and from legal theories that became ripe or fully developed through post-filing investigation); and 4) that no prejudice will result as trial is not scheduled until April 26, 2027, discovery has not yet commenced, and the new defendants were already on notice of this litigation through the recorded lis pendens and written correspondence from Plaintiffs' counsel.

In support of the motion, counsel for Plaintiffs' Zshonette L. Reed submits a declaration. In compliance with California Rules of Court, rule 3.1324(a), the proposed amended pleading is attached as Exhibit A. In compliance with California Rules of Court, rule 3.1324(b), Attorney Reed also describes, in depth, the effect of the amendments, why they are necessary and proper, when the facts were discovered and why they were not made earlier. (See Reed Decl. ¶¶ 6, 8.) In sum, Reed details that on August 6, 2025, Notices of Pendency of Action were recorded as to both properties at issue. On September 3, 2025, Ress conducted a trustee's sale of both properties notwithstanding the lis pendens. Counsel also discovered the notary involved is a Ress employee and acted as a notary in which her employer is a party. Counsel also discovered other successor trustees after the death of Shirley Jefferson, and counsel discovered additional tenants. On March 17, 2026, Plaintiff Sir Lexies Lee was arrested and charged with first-degree burglary, and Plaintiff's family was displaced as a result. (See Reed Decl. ¶ 6.) Attorney Reed also explains that some of these events only recently occurred and were discovered after she investigated upon taking over the case in March 2026. (¶ 8.) Trial is not set until April 26, 2027, and discovery has not commenced. (¶ 9.)

Defendants Cornell Jefferson and the Trust oppose this motion on the grounds it is untimely, prejudices the defendants, and there is an unlikelihood of success of the proposed charges. Defendants neither rebut the justifications for the timing of the amendment nor address the fact that trial is scheduled nine months into the future. Defendants' arguments on prejudice are similarly unpersuasive.

Because judicial policy heavily favors resolution on the merits, and trial is not set until April 2027, Defendants suffer no cognizable procedural prejudice. The motion for leave to amend is granted.[1]

VII. MOTION FOR A PRELIMINARY INJUNCTION

A. Applicable Law

Code of Civil Procedure section 527, subd. (a), allows for the issuance of preliminary injunctions at any time before judgment upon a verified complaint or upon affidavits that show satisfactorily that sufficient ground exists. Nevertheless, a preliminary injunction is a drastic and extraordinary remedy that should not be granted unless the movant, by a clear showing, carries the burden of persuasion. (*Mazurek v. Armstrong* (1997) 520 U.S. 968, 972.)

A preliminary injunction is appropriate if the party is entitled to the relief demanded and irreparable harm will result to the applicant if the injunction is not granted. (Code Civ. Proc., § 526, subd. (a)(2).) The issuance of a preliminary injunction rests within the sound discretion of the trial court. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 527; *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69.) That discretion, however, should be exercised in favor of the party most likely to be injured. (*McCoy v. Matich* (1954) 128 Cal.App.2d 50, 52.)

In ruling on a request for a preliminary injunction, the court must evaluate two interrelated factors: (1) the reasonable probability that the movant will prevail on the merits at trial, and (2) whether the harm to the movant from refusal to grant preliminary injunction

[1] The Court deems the First Amended Complaint filed for purposes of this motion only, because Plaintiffs rely on allegations and causes of action in the FAC in support of their motion for the injunction. The Court ORDERS Plaintiff to serve and file the FAC no later than August 3, 2026.

outweighs the harm to the respondent from the imposition of the preliminary injunction. (*IT Corp., supra*, 35 Cal.3d at pp. 69-70.) The latter factor involves consideration of the inadequacy of the other remedies, the degree of irreparable harm, and the necessity of preserving the status quo. (*14859 Moorpark Homeowner's Assn. v. VRT Corp.* (1998) 63 Cal.App.4th 1396, 1402.) The mix of these two factors should guide the court in its exercise of discretion — the greater the showing on one of the factors, the less that must be shown on the other. (*Butt v. State of Calif.* (1992) 4 Cal.4th 668, 678.) Nonetheless, both elements must be established before a preliminary injunction is granted. (*Ibid.*)

Code of Civil Procedure section 526, subd. (a)(2), lists the traditional consideration of "irreparable harm." Irreparable harm is often related to the "inadequate legal remedy." Relief is unlikely unless someone will be significantly hurt in a way that cannot later be repaired. (*People ex rel. Gow v. Mitchell Brothers' Santa Ana Theater* (1981) 118 Cal.App.3d 863, 870-71.) Injunctive relief is afforded when related to a cause of action in the complaint that affords such relief. (*Shell Oil Co. v. Richter* (1942) 52 Cal.App.2d 164, 168.) A cause of action must exist before injunctive relief may be granted, and where the complaint fails to state a cause of action that would afford injunctive relief, no preliminary injunction can be granted. (*Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623.)

B. Summary of Parties' Submissions

1. <u>Plaintiffs' Position</u>

Plaintiffs move for a preliminary injunction to maintain the status quo, arguing they are likely to prevail on claims for quiet title, cancellation of void instruments, and wrongful foreclosure based on three independent structural defects:

➢ **Prohibited Notarization**: The Trustee's Deeds Upon Sale are void under Government Code section 8224 because the officiating notary, Angela Groves, was an employee of the foreclosure trustee, Ress Financial Corporation ("Ress").

➢ **Late Recording**: The deeds were recorded 56 and 61 days after the September 3, 2025 trustee sale, missing the 21-day statutory perfection window under Civil Code section 2924h(c).

➢ **Defective Notices of Default**: The operative Notices of Default stated only the total outstanding loan balances rather than the specific reinstatement amounts required to cure under Civil Code section 2924c.

Plaintiffs further argue that the recorded Notices of Pendency of Action (lis pendens) on August 6, 2025, provided constructive notice to subsequent purchasers Kellner and Polaris, defeating their claims to bona fide purchaser (BFP) status as a matter of law.

Regarding irreparable harm, Plaintiffs point to the physical destruction of Parcel One (structural failure, exposure to the elements, and documented squatter break-ins) and the imminent risk of a third-party sale of Parcel Two, which has been listed on the Multiple Listing Service (MLS) and leased in violation of this Court's Temporary Restraining Order (TRO). Plaintiffs also request interim authority to enter and stabilize Parcel One.

2. <u>Defendants' Position</u>

Defendants Kellner, Massey, Ress, and Polaris file separate oppositions, raising three primary defenses:

➢ **Voidable vs. Void Title**: Defendants argue that any procedural or notary infractions render the trustee's deeds merely voidable, not void, which cannot disrupt title transferred to a BFP.

➢ **Extinguishment of Lis Pendens**: Relying on the principle of relation back, Defendants contend that because the underlying deeds of trust were recorded years before the litigation, the subsequent foreclosure sales extinguished Plaintiffs' subordinate lis pendens.

➢ **Absence of Tender**: Defendants maintain that Plaintiffs' failure to allege a credible tender of the secured debt is a fatal condition precedent to any equitable action to set aside the sales.

Additionally, Polaris argues it did not abandon Parcel One but was halted by this Court's TRO while seeking permits to repair vehicle damage. Kellner argues that Parcel Two was used as a rental property rather than a primary homestead, defeating any presumption of unique or irreparable harm.

C. Likelihood of Success on the Merits

Plaintiffs here take issue with the Notice of Default for not allowing them to cure the default because material terms were excluded. None of the Defendants contest this evidence. Importantly: "[a] material defect in the notice, such as a gross misstatement of the amount in default, voids the sale." (Bernhardt, *Cal. Mortgage and Deed of Trust Practice* (Cont.Ed.Bar 3d ed. 2004) § 2.22, pp. 72–73.) (*Id.* at p. 99.) Plaintiffs have therefore provided evidence that supports voiding the sales. As this evidence is uncontested, and would affect all parties, Plaintiffs have presented a likelihood of prevailing on the merits.

In addition, the BFP status of the purchasers Kellner and Polaris is not established. Because Plaintiffs present uncontested evidence that the underlying Notices of Default omitted material reinstatement terms, the foreclosure sales are likely void *ab initio*. Consequently, the subsequent purchasers cannot rely on the clean title presumptions of a trustee's sale, and their interests remain subject to the prior recorded lis pendens. "The main purpose of the recording laws is "to protect those who honestly believe they are acquiring a good title, and who invest some substantial sum in reliance on that belief." Generally, to be a *bona fide* purchaser for value, the buyer must (1) purchase the property in good faith for value, and (2) have no knowledge or notice — actual or constructive — of the asserted rights of another. Ordinarily, a buyer satisfying those elements "takes the property free of such unknown rights. [Citations.]""" (*RNT Holdings, LLC v. United General Title Ins. Co.* (2014) 230 Cal.App.4th 1289, 1296.) Here the purchasers had constructive notice considering the recording of the lis pendens. Therefore, Plaintiffs have established a likelihood of prevailing on the merits, which Defendants have not overcome.

D. Irreparable Harm

As to irreparable harm, Defendants appear to argue that monetary damages are sufficient; however, Civil Code section 3387 provides that: "It is to be presumed that the breach of an agreement to transfer real property cannot be adequately relieved by pecuniary compensation. In the case of a single-family dwelling which the party seeking performance intends to occupy, this presumption is conclusive. In all other cases, this presumption is a presumption affecting the burden of proof." While Defendant Kellner contends Parcel Two is a commercial rental, Plaintiffs' supplemental declarations establishing their intent to reoccupy the property as their principal residence trigger the conclusive presumption of irreparable harm under Civil Code section 3387. (*See* Lee Supp. Decl. ¶¶ 2, 6; *see also Flores Decl.* ¶¶ 2, 6.) Here, Plaintiffs have shown irreparable harm and that the balance of hardships weighs in their favor.

Therefore, the Court GRANTS the motion for preliminary injunction, to the extent it maintains the status quo. Plaintiffs' request to allow them to enter and maintain Parcel One pending trial is denied. This would be tantamount to granting them possession of Parcel One at this time, which would go beyond maintaining the status quo.

E. Bond

A bond was previously ordered for $50,000 but the Court has since waived the bond pursuant to Code of Civil Procedure section 995.240. Defendant Kellner requests the Court require a bond be posted. She maintains the injunction will prevent her from selling the property that she renovated, which she estimates is worth $400,000. Plaintiffs, however, argue that Kellner did not move for reconsideration when this Court waived the bond requirement previously. To the contrary, at the hearing when this issue was considered, none of the parties objected. The Court exercises discretion to continue to waive the bond requirement.

VIII. CONCLUSION

1. Plaintiffs' Motion for Leave to File Amended Complaint is GRANTED. Plaintiffs shall file their First Amended Complaint no later than August 3, 2026.

2. Plaintiffs' Motion for Preliminary Injunction is GRANTED.

IT IS SO ORDERED.

Dated: ________________

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court